# DV-165 Order on Request to Keep Minor's Information Confidential

Clerk stamps date here when form is filed.

☐ CONFIDENTIAL ☐ PUBLIC VERSION (REDACTED)

Fill in court name and street address:

**Superior Court of California, County of**

Court fills in case number when form is filed.

**Case Number:**

## 1 Parties in This Case

a. Person who requested restraining order (form DV-100, item 1):
Full Name: _____

b. Person to be restrained (form DV-100, item 2):
Full Name: _____

## 2 Person Making Request for Confidentiality

Full Name: _____

*(Court will complete item 3 if request is denied or items 4–13 if request is granted or partially granted.)*

**Instructions to Clerk:** If item 3 is checked, file page 1 in a public file and discard pages 2–6.

## 3 ☐ Court Denied Request or More Information Needed

a. ☐ **Denied.** The request to keep information of a minor or minors confidential is denied.

(1) ☐ **The court will NOT make a decision on the Request for Domestic Violence Restraining Order (form DV-100).** The request for restraining order and proposed order forms must be returned to the requester personally, destroyed, or deleted from electronic files and not filed with the court unless the person requesting the restraining order agrees to file them without any changes.

(2) ☐ **The court will make a decision on the Request for Domestic Violence Restraining Order (form DV-100).** The request for restraining order and any accompanying orders will be filed in the public file.

b. ☐ **More information is needed for court decision.** You must go to court on the date and time below. At the court date, you must give more information on why you need the court to make information confidential.

**Hearing Date** → Date: _____ Time: _____
Dept.: _____ Room: _____

Name and address of court if different from above:
_____
_____
_____

c. If 3 is checked, only this page of this order form will be issued. All other pages may be discarded.

Date: _____

_____
*Judge (or Judicial Officer)*

**This is a Court Order.**

Case Number:

*Court will complete the rest of this form if the request is partially or fully granted*

## 4 ☐ Court Granted Request

a. ☐ **Granted in full.** The request to keep the information of a minor or minors confidential is granted in full. Details of the order are stated below in items 5–12.

b. ☐ **Partially granted**. The request to keep the information of a minor or minors confidential is granted only in part. Details of the order are stated below in items 5–12.

## 5 Findings

☐ The court finds all of the following *(all of these findings are required if granting in full or in part)*:

a. The right to privacy of the minors listed in item 6 overcomes the public's right of access to the information;

b. There is a substantial probability that the interests of the minors listed in item 6 will be prejudiced if the information is not kept confidential;

c. The order is narrowly tailored; and

d. No less restrictive means exist to protect the privacy of the minors in item 6.

## 6 ☐ Minors Subject to This Order

This order protects the information listed in item 7 for the following minors:

a. Name: _____

b. Name: _____

c. Name: _____

d. Name: _____

☐ *Check here if there are additional minors. Attach a sheet of paper and write "Attachment 6—Additional Minors" for a title.*

References in this order to "the minor" refer to all minors listed here.

## 7 Information to Be Kept Confidential from the Public

**WARNING:** Unless authorized by the court or by law, if the information listed below is misused or disclosed to anyone other than law enforcement, you may be sanctioned up to $1,000 or face other court penalties. See Family Code section 6301.5 for the limited situations in which disclosures can be made without a court order.

The following information must be kept confidential and not viewable by the public. *(Check all that apply.)*

a. ☐ **Name of minor**

| **True name of minor in item 6** *(to be kept confidential)* | **Initials viewable by the public** *(to be used in redacted version)* |
|---|---|
| | |
| | |
| | |
| | |

**This is a Court Order.**

b. ☐ **Address of minor**

The following addresses of the minors listed in item (6) must be redacted and must not be viewable by the public:_____

_____

c. ☐ **Information relating to minor** *(check one):*

(1) ☐ The information CIRCLED in the attached copy of form DV-100 or other document or form is made confidential by this order.

(2) ☐ The information below is made confidential by this order:

| **Location of Information** *(for example, form #, page #, paragraph #, line #, attachment #, or exhibit #)* | **Information to Be Redacted** *(not viewable by the public)* |
|---|---|
| (a) | |
| (b) | |
| (c) | |
| (d) | |

☐ *Check here if there is not enough space for your answer. Put your complete answer on an attached sheet of paper, and write "Attachment 7c(2)" for a title.*

d. ☐ **Other:**

_____

_____

_____

**This is a Court Order.**

## 8 Information to Be Kept Confidential from the Restrained Person

The restrained person *(full name)* _____ will have access to the following information checked in item 7 to comply with the protective order and prepare a response:

a. ☐ All the information, unredacted.

b. ☐ All the information except for the following:

_____
_____
_____
_____
_____

☐ *Check here if there is not enough space for your answer. Put your complete answer on an attached sheet of paper, and write "Attachment 8b" for a title.*

## 9 People Who May Have Access to Unredacted Court Documents

a. The minor's *(check all that apply)*:

(1) ☐ School and after-school program

(2) ☐ Childcare provider

(3) ☐ Supervised visitation provider

(4) ☐ Other (*name*): _____

b. may be given copies of unredacted documents from this case with the following information *(check all that apply)*:

(1) ☐ Minor's name

(2) ☐ Minor's address

(3) ☐ Minor's information listed in item 7c.

c. Law enforcement may have access to any information in this case that is necessary to enforce the restraining order.

## 10 Responsibility for Redacting All Forms and Documents

a. All forms and documents submitted with the request for confidentiality **must be redacted and filed with the court** no later than *(number of court days or date)* _____ , by the:

(1) ☐ Court

(2) ☐ Person making the request

(3) ☐ Other: _____

b. The redacted documents must be filed in a public file, and the unredacted documents must be filed in a confidential file.

## 11 Court Records and Hearings

The information listed in item 7 must NOT be disclosed by the court in any:

a. Registers of actions, indexes, court calendars, court transcripts, or minute orders in this case, any family law case, or any civil case with the same parties, in the State of California.

b. Future court hearings, including any documents introduced during a hearing in this case, any family law case, or any civil case with the same parties, in the State of California.

## 12 To All Parties

a. The information made confidential by this order must NOT be made public in this case, any family law case, or or any other civil case with the same parties, in the State of California.

b. If you file a document in this case or any case noted above in 12a that includes information listed in item 7, you must attach form DV-175, *Cover Sheet for Confidential Information*, to the front, and include a copy of this order if there is not already one in the case.

Case Number:

## 13 To the Person Making the Request for Confidentiality

You must do the following:

a. ☐ Have a copy of each form listed in item (c) below **personally served** on (given to) the restrained person.

(*See form* DV-200-INFO *to find out how to meet this requirement. Personal service is required when the protected person is making this request and when forms* DV-100, DV-109 and DV-110 have NOT been served on the restrained person.)

b. ☐ Have a copy of each form listed in item (c) mailed to the:

(1) ☐ Restrained person

(2) ☐ Protected person

(3) ☐ Other: _____

(See form DV-250 to find out how to meet this requirement.)

c. Forms to serve:

(1) Form DV-170, *Notice of Order Protecting Information of Minor*
**(Form DV-170 should be the first page with all other forms stapled behind it.)**

(2) ☐ Form DV-100, *Request for Domestic Violence Restraining Order*

(3) ☐ Form DV-109, *Notice of Court Hearing*

(4) ☐ Form DV-110, *Temporary Restraining Order*

(5) ☐ Form DV-160, *Request to Keep Minor's Information Confidential*
☐ Unredacted ☐ Redacted (if item 8b on DV-165 is checked)

(6) Form DV-165, *Order on Request to Keep Minor's Information Confidential*
☐ Unredacted ☐ Redacted (if item 8b on DV-165 is checked)

(7) Form DV-175, *Cover Sheet for Confidential Information* (leave blank)

(8) ☐ Other: _____

Date: _____

_____
*Judge (or Judicial Officer)*

**Instructions to Clerk**

1. The originals of all unredacted documents containing the information checked in item (7) must be kept in a confidential file and must NOT appear in any **register of action, calendar, index, minute order, or transcript** in this case, or any civil case with the same parties, in the State of California.
2. For any copies provided that include confidential information, use *Notice of Order Protecting Information of Minor* (form CH-170) as a cover sheet for each set of forms.
3. Any information listed in item 8b must not be available to the restrained person and must be filed in a confidential file.

**This is a Court Order.**



rivacy, please press the Clear This Form button after y

Print this form Save this form Clear this form